

HOUSE No. 3722

The Commonwealth of Massachusetts

PRESENTED BY:

David Henry Argosky LeBoeuf

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to simplifying processes at the Registry of Motor Vehicles for surviving spouses and next of kin.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>1/14/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>6/25/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/19/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/17/2025</i>

HOUSE No. 3722

By Representative LeBoeuf of Worcester, a petition (accompanied by bill, House, No. 3722) of David Henry Argosky LeBoeuf relative to applications for certificates of title at the Registry of Motor Vehicles for surviving spouses and next of kin of deceased persons. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3707 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to simplifying processes at the Registry of Motor Vehicles for surviving spouses and next of kin.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 15A of chapter 90D of the General Laws, as appearing in the 2020 Official
2 Edition, is hereby amended by striking out paragraph (3) and inserting in place thereof the
3 following 2 paragraphs:-

4 (3) Where a certificate of title has been issued on said vehicle to a lienholder pursuant to
5 a lease agreement, the interest, rights and obligations of the decedent spouse under the lease shall
6 pass to the surviving spouse and, upon written application to the registrar accompanied by a copy
7 of the death certificate, a new certificate of title shall be issued without the decedent spouse's
8 name and the surviving spouse may register the vehicle solely in the surviving spouse's name.

9 (4) A sworn affidavit to the effect that said vehicle has not been disposed of otherwise by
10 will, shall accompany the application for the issuance of a certificate of title. Said affidavit shall
11 be in a form prepared by the registrar.